

Harish Kumar vs Sarita on 27 November, 2020

Author: Hima Kohli

Bench: Hima Kohli

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ MAT. APP. (F.C.) 146/2020
HARISH KUMAR

..... Appellant

Through: Mr. Arvind Singh, Advocate

versus

SARITA

..... Respondent

Through: None

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI
HON'BLE MR. JUSTICE BRIJESH SETHI
ORDER

% 27.11.2020 HEARD THROUGH VIDEO CONFERENCING C.M. Nos. 30683/2020 & 30684/2020
(Exemption) Allowed, subject to all just exceptions.

MAT. APP. (F.C.) 146/2020 & CM 30682/2020 (condonation of delay in filing appeal (12 days)

1. The appellant/husband is aggrieved by the order dated 25.02.2020, passed by the by learned Family Court, Karkardooma dismissing a petition for divorce filed by him against the respondent/wife under Section 13 (1) (ia) of the Hindu Marriage Act, 1955.
2. The facts of the case are that the marriage of the parties was solemnised on 20.04.2008, and there are two children born from out of the wedlock, a son aged 11 years and a daughter aged 8 ½ years. The impugned judgment records that the parties have been residing separately since October, 2014.
3. A perusal of the paperbook reveals that learned counsel for the appellant has sent an advance copy of the paperbook directly to the respondent through speed post. It is stated that he has also intimated her on the telephone about filing of the appeal. However, the respondent is not present. No effort has been made to effect service on the counsel, who was appearing for the respondent before the learned Family Court.
4. Learned counsel for the appellant shall give a written intimation of the next date of hearing along with a complete set of the paperbook to the counsel who was appearing for the respondent in the Family Court. The notice issued by the counsel for the appellant to the respondent shall indicate that the respondent shall log into the hearing on the next date. The appellant shall also be virtually present.

5. List for 'admission' on 13.01.2021.

HIMA KOHLI, J BRIJESH SETHI, J NOVEMBER 27, 2020 hsk